

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #08	CCRB Case #: 201502116	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 03/15/2015 4:00 AM	Location of Incident: 1556 Ralph Avenue and the 69th Precinct Stationhouse.	18 Mo. SOL 9/15/2016	Precinct: 69
Date/Time CV Reported Fri, 03/20/2015 11:53 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/23/2015 11:53 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Francisco Diaz	27416	952677	069 PCT
2. An officer			
3. SGT Rajesh Lalwani	5427	933908	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Martin Biliski	22480	952467	069 PCT
2. POM Kevin Oconnell	00888	916334	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Francisco Diaz	Discourtesy: PO Francisco Diaz spoke rudely to § 87(2)(b) at 1556 Ralph Avenue in Brooklyn.	A . Unsubstantiated
B . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b) at 1556 Ralph Avenue in Brooklyn.	B . Exonerated
C . SGT Rajesh Lalwani	Abuse: Sgt. Rajesh Lalwani did not process § 87(2)(b) s complaint regarding an officer at the 69th Precinct stationhouse.	C . Substantiated
D . SGT Rajesh Lalwani	Abuse: Sgt. Rajesh Lalwani refused to provide his shield number to § 87(2)(b) at the 69th Precinct stationhouse.	D . Unsubstantiated

Case Summary

On March 15, 2015, at approximately 4:00 a.m., at 1556 Ralph Avenue in Brooklyn, § 87(2)(b) had recently left Tracks Bar, which was located at 1556 Ralph Avenue in Brooklyn, with § 87(2)(b) and § 87(2)(b). Following an argument with two female bar patrons, § 87(2)(b) was stopped by PO Francisco Diaz and his unidentified partner. § 87(2)(b) asked PO Diaz for his name and shield number. Prior to providing his information to § 87(2)(b), PO Diaz allegedly used the word “fuck” toward § 87(2)(b) (**allegation A**). As PO Diaz was speaking with § 87(2)(b), a car was doing burnouts down the block. PO Diaz and his partner went to deal with the unrelated incident, at which time an officer told § 87(2)(b) to “get the fuck out of the car” (**allegation B**). The officers soon returned to § 87(2)(b) and PO Diaz issued § 87(2)(b) a summons for § 87(2)(b).

§ 87(2)(b) and § 87(2)(b) went to the 69th Precinct stationhouse later that same day to file a complaint about PO Diaz’s conduct during the stop. § 87(2)(b) and § 87(2)(b) spoke with Sgt. Rajesh Lalwani, who told § 87(2)(b) that he could not make a complaint at the stationhouse (**allegation C**). Sgt. Lalwani pointed to the CCRB’s phone number which was featured on a board above the desk. § 87(2)(b) and § 87(2)(b) asked Sgt. Lalwani for his name, which he wrote down on a piece of paper. After realizing that they could not read Sgt. Lalwani’s handwriting, they returned to the stationhouse and asked Sgt. Lalwani for his shield number. Sgt. Lalwani verbally provided an incorrect number several times before § 87(2)(b) read the correct numbers from the shield on his chest (**allegation D**).

Mediation, Civil and Criminal Histories

§ 87(2)(b) declined to mediate this complaint.

An NOC inquiry was submitted to the Office of the New York City Comptroller on July 30, 2015. Its results will be added to the case file upon receipt [see 01 Board Review].

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

This is the first CCRB case filed by or on behalf of § 87(2)(b) or § 87(2)(b) [see 05 Board Review].

This is the second CCRB case filed by or on behalf of § 87(2)(b) [see 06 Board Review].

This is the first CCRB case filed by or on behalf of § 87(2)(b) [see 07 Board Review].

This is the first CCRB complaint filed against PO Diaz during his three year tenure.

This is the second CCRB complaint filed against Sgt. Lalwani during his 11 year tenure, with no allegations substantiated against him § 87(2)(g).

Potential Issues

§ 87(2)(b) was not interviewed during the course of the investigation. § 87(2)(g)

PO Kevin O’Connell was not interviewed because he was on terminal leave as of April 2, 2015. He retired on August 1, 2015 [see 10 Board Review].

According to PO Biliski, he was pulled from his assignment with PO Diaz at 2:49 a.m. in order to assist PO Matthew Woods with transporting a prisoner. PO Biliski was not at the incident location at 1556 Ralph Avenue [see 11 Board Review]. The partner change is not noted in either officer’s memo book or the roll call, and it is unknown who was working with PO Diaz at the time of this incident [see 12-14 Board Review]. § 87(2)(g)

Findings and Recommendation

Allegation A) Discourtesy: PO Francisco Diaz spoke discourteously to § 87(2)(b) at 1556 Ralph Avenue in Brooklyn.

§ 87(2)(b) testified that he exited Tracks Bar at 1556 Ralph Avenue with his friend § 87(2)(b). § 87(2)(b) was also with § 87(2)(b) and § 87(2)(b) but § 87(2)(b) had not previously met § 87(2)(b) or § 87(2)(b). When § 87(2)(b) exited the bar, an intoxicated female yelled at § 87(2)(b). He denied engaging in a verbal argument or raising his voice to her. A security guard grabbed § 87(2)(b) and told him that he could leave, but § 87(2)(b) believed that the security did this because he frequents the establishment and is friendly with many of the security guards there.

§ 87(2)(b) walked away, but a marked RMP drove onto the sidewalk near him. PO Diaz and his partner approached § 87(2)(b) and PO Diaz asked § 87(2)(b) for his ID. After a brief discussion, § 87(2)(b) ID was returned. § 87(2)(b) asked PO Diaz for his name. PO Diaz became upset, and he used the word “fuck” at some point when he repeated the question, “What’s my name? What’s my name?” PO Diaz ultimately provided his name to § 87(2)(b) and issued him a summons for § 87(2)(b) [see 15 Board Review].

§ 87(2)(b) stated that he returned from his car midway through § 87(2)(b) interaction with the officers. He heard § 87(2)(b) ask for PO Diaz’s name, though he did not know why § 87(2)(b) did so. PO Diaz seemed upset and asked § 87(2)(b) for his ID a second time. § 87(2)(b) made no mention of any profanity used by PO Diaz [see 16 Board Review].

§ 87(2)(b) testified that she was present for the interaction between § 87(2)(b) and the women outside of Tracks Bar, and she revealed that § 87(2)(b) was yelling at the women. § 87(2)(b) believed that § 87(2)(b) had drunk alcohol that night but did not know the degree of

his intoxication. § 87(2)(b) was also present for the entire interaction between § 87(2)(b) and PO Diaz. According to § 87(2)(b) PO Diaz had returned § 87(2)(b) ID and was entering his RMP when § 87(2)(b) asked for his name. PO Diaz appeared angry, got close to § 87(2)(b) face, and yelled. § 87(2)(b) did not remember any details about what PO Diaz said to § 87(2)(b) and she did not know if PO Diaz used any profanity [see 17 Board Review].

In her brief phone statement, § 87(2)(b) made no mention of any profanity used by the officers. Her statement was otherwise consistent with the others [see 18 Board Review].

PO Diaz testified that he approached § 87(2)(b) because § 87(2)(b) was screaming and aggressively approaching a female on the sidewalk. He heard § 87(2)(b) say, “Fuck you bitch. Keep moving.” § 87(2)(b) continued to speak loudly as PO Diaz and his partner interacted with him, but PO Diaz did not think that he was intoxicated. PO Diaz denied returning § 87(2)(b) ID to him prior to issuing the summons. § 87(2)(b) facial expressions indicated that he was upset when he received the summons, but PO Diaz did not testify that § 87(2)(b) asked him for his name. PO Diaz denied asking § 87(2)(b) “What’s my fucking name?” PO Diaz also denied using any profanity in his interaction with § 87(2)(b) [see 19 Board Review].

PO Biliski testified that his assignment was changed at 2:49 a.m., and he was not present with PO Diaz for the stop at 4:00 a.m. At the time of the incident involving § 87(2)(b) PO Biliski was transporting a prisoner to the 78th Precinct stationhouse with PO Woods [see 11 Board Review].

Sgt. Lalwani was assigned to be the desk officer at the 69th Precinct stationhouse. He was not present at the scene [see 09 Board Review].

None of the videos provided by § 87(2)(b) or § 87(2)(b) revealed any profanity used by the officers as they spoke with § 87(2)(b). However, parts of their conversation were inaudible see IAs 40-44, 08 Board Review].

§ 87(2)(g)
[REDACTED]

It is therefore recommended that **allegation A** be closed as **unsubstantiated**.

Allegation B) Discourtesy: An officer spoke discourteously to § 87(2)(b) at 1556 Ralph Avenue in Brooklyn.

In his initial phone statement, § 87(2)(b) stated that the officers left him to deal with an incident down the street which involved a car doing burnouts. § 87(2)(b) heard an officer tell someone to “get the fuck out of the car.” § 87(2)(b) did not know which officer made the comment, and he did not know the occupants of the vehicle [see 20 Board Review].

§ 87(2)(b) was arrested at 4:36 a.m. at East 78th Street and Ralph Avenue, approximately one block from where the incident took place with § 87(2)(b). As per his arrest report, § 87(2)(b) was observed driving recklessly and driving circles around an unmarked RMP that was stopped with its lights flashing. At the scene, § 87(2)(b) submitted to a breathalyzer test and blew a .088, which is above the legal limit of .08. § 87(2)(b) was arrested by PO Mark Hunter of the 69th Precinct. Later, at the 78th Precinct stationhouse, § 87(2)(b) submitted to Intoxilyzer Alcohol Analyzer and blew a breath sample of .129 [see 21 Board Review].

At the 1:14 minute mark in the video in IA #43, tires are heard screeching as an engine revs loudly. In the video in IA #44, at the 10 second mark, PO Diaz's RMP is parked next to a white Ford Crown Victoria. The officers' RMP has its lights activated. A horn blares, and the officers are heard yelling. The headlights of the Crown Victoria turn on. An officer yells, "Get the fuck out of the car." It cannot be seen which officer says this. § 87(2)(b) and his friends walk on the opposite side of the street toward the officers' RMP but stop and do not approach it [see IA 44, 08 Board Review].

PO Diaz acknowledged that he and his partner, who he believed was PO Biliski, were the first officers to interact with § 87(2)(b). They immediately called for backup because they believed it was an arrest situation. They pulled up next to § 87(2)(b)'s car and attempted to cut him off. PO Diaz did not believe that § 87(2)(b) attempted to flee, but he did not stop doing burnouts and donuts. PO Diaz verbally instructed § 87(2)(b) to get out of the car, but he did not remember his exact words, and he did not know if he was the only officer issuing commands. Either PO Diaz or PO Biliski opened the driver's door after § 87(2)(b) failed to comply with numerous directives. PO Diaz did not remember saying, "Get the fuck out of the car." PO Diaz and PO Biliski returned to § 87(2)(b) after additional officers arrived [see 19 Board Review].

As mentioned above, PO Biliski testified that his assignment was changed at 2:49 a.m., and he was not present at the scene with PO Diaz. PO Biliski returned to the 69th Precinct stationhouse at 4:32 a.m. after he finished transporting a prisoner with PO Woods [see 11 Board Review].

The assigned partner changes are not noted in the memo books of PO Diaz or PO Biliski, nor are they indicated on the roll call [see 12-14 Board Review].

As per DCT case 78667/03, involving PD vs. PO Darryl White, an officer may use an expletive in a verbal command in lieu of using physical force to gain control of the situation and is not used as a "gratuitous disrespectful remark" directed toward an individual [see 22 Board Review].

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **allegation B** be closed as **exonerated**.

Allegation C) Sgt. Rajesh Lalwani refused to process § 87(2)(b) complaint regarding an officer at the 69th Precinct stationhouse.

§ 87(2)(b) stated he, § 87(2)(b) and the rest of the group drove to the 69th Precinct stationhouse to file a complaint against PO Diaz. Both § 87(2)(b) and § 87(2)(b) voiced their desire to file a complaint against PO Diaz, but § 87(2)(b) took the primary role in speaking with Sgt. Lalwani, who was the desk sergeant. Sgt. Lalwani appeared to have a bad attitude and told § 87(2)(b) that he could not file a complaint at the stationhouse. § 87(2)(b) replied that he was on the phone with 911 and the operator had informed him that he could file a complaint at the stationhouse. Sgt. Lalwani told § 87(2)(b) that he could not make a complaint there and instructed him to look up at a number that was displayed on a board above the T/S Operator. The number was later determined to belong to the CCRB, but Sgt. Lalwani did not inform § 87(2)(b) of this at the time. Sgt. Lalwani asked § 87(2)(b) for his ID, and he provided it. After asking Sgt. Lalwani for his name and shield number, § 87(2)(b) and § 87(2)(b) left without filing a complaint [see 15 Board Review].

§ 87(2)(b)'s testimony was consistent with § 87(2)(b). Neither § 87(2)(b) nor § 87(2)(b) entered the stationhouse with § 87(2)(b) and § 87(2)(b). As such, they were unable to provide any testimony in regards [see 16 Board Review].

Sgt. Lalwani testified that § 87(2)(b) and § 87(2)(b) entered the stationhouse complaining about a summons that § 87(2)(b) received earlier. Sgt. Lalwani smelled alcohol as soon as § 87(2)(b) and § 87(2)(b) entered, and he believed that they were intoxicated. They were also yelling and filming on their cell phones.

According to Sgt. Lalwani, § 87(2)(b) wanted Sgt. Lalwani or PO Kevin O'Connell, who was the T/S Operator that day, to get rid of the summons for him. § 87(2)(b) was also complaining, but Sgt. Lalwani did not remember what he was complaining about. According to Sgt. Lalwani, § 87(2)(b) and § 87(2)(b) did not listen when he told them several times that he could not dismiss the summons. Sgt. Lalwani asked § 87(2)(b) for his ID so that he could make a command log entry about the complaint. He asked § 87(2)(b) to sit down and wait. As Sgt. Lalwani reached this part of his version of the events in his interview, his SBA representative, Joseph Quinn, asked Sgt. Lalwani if he provided § 87(2)(b) with the CCRB complaint form, and Sgt. Lalwani replied that he believed he provided § 87(2)(b) with the CCRB complaint form. Sgt. Lalwani had not provided this information during his initial narrative of the incident, nor did he mention it prior to being prompted by his SBA representative. Sgt. Lalwani did not know if § 87(2)(b) filled out the complaint form because § 87(2)(b) left. § 87(2)(b) ID was returned before he left for good, though he was in and out of the stationhouse several times during his visit [see 09 Board Review].

As mentioned above, PO O'Connell is retired. He was not interviewed [see 10 Board Review].

Sgt. Lalwani's command log entry for this incident did not have any information about whether he provided § 87(2)(b) with a CCRB complaint form. It stated only that § 87(2)(b) was intoxicated and uncooperative, and that he was given the number to the CCRB to report the complaint [see 23 Board Review].

Patrol Guide procedure 207-31 states that complaints against uniformed members of the service may be made at any patrol precinct, PSA, transit district, traffic unit, Internal Affairs Bureau, or any other office of the department. Complaints must be processed as follows: If the complaint is made in person, a supervisor must interview the complaint and provide a copy of the Civilian Complaint Report to be prepared and signed by the complainant [see 24 Board Review].

§ 87(2)(g)

Lalwani leans forward and shows his shield but does not say anything other than, “You have it? You can read it?” § 87(2)(b) then leaves the stationhouse [see IA 7, 25 Board Review].

Sgt. Lalwani testified that he verbally provided his name and shield number as requested several times, but he believed that § 87(2)(b) and § 87(2)(b) did not understand him because they were intoxicated. Sgt. Lalwani wrote his name and shield number on a piece of paper and gave it to § 87(2)(b). § 87(2)(b) told Sgt. Lalwani that he could not read his handwriting. Sgt. Lalwani then showed his shield to § 87(2)(b) as he stood six to ten feet from him.

Sgt. Lalwani was shown the above mentioned video. He confirmed that it was his voice on the video and that he said “5-4-7-2” at the 41 second mark. When a standing officer on the phone came into view, Sgt. Lalwani confirmed that it was him. During that portion of the interview, the investigators pointed out to Sgt. Lalwani that he shield number on his shirt which he wore to the interview had a shield number which read “5-4-2-7.” Sgt. Lalwani replied that his shield number during his 11 year tenure as a police officer was 5472, and it had only changed to 5427 when he was promoted to sergeant in September of 2014. Additionally, when asked to provide his shield number as is procedure at the beginning of every CCRB interview, Sgt. Lalwani provided his shield number as 5472 [see 09 Board Review].

A search of EDMS revealed that Sgt. Lalwani’s shield number as a police officer was, in fact, 5472 [see 26 Board Review].

§ 87(2)(g)

Based on the above, it is recommended that **allegation D** be closed as **unsubstantiated**.

Pod: 8

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date